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Case Number: 22STCV21858 Hearing Date: September 3, 2026 Dept: 1

Preliminary Approval of Class Action
Settlement

Department SSC-1

Hon. Theresa M. Traber

Curtis Johnson v. Help/Systems, LLC

Case No.: 22STCV21858

Hearing: September 3, 2026

TENTATIVE RULING

The Court's tentative ruling is to GRANT preliminary approval but notes that the definition of Class Counsel in the Proposed Order at ¶3 should include counsel Brandon Chang.

The hearing on the motion for final approval is set for ____________________ at 10:30 a.m.

BACKGROUND

This is a wage and hour class action. On July 6, 2022, Plaintiff Curtis Johnson ("Plaintiff" or "Johnson"), individually and on behalf of all others similarly situated, filed this action against Defendant Help/Systems, LLC ("Defendant" or "Help/Systems") and Does 1 through 100 asserting the following causes of action: (1) failure to pay overtime wages, (2) failure to pay minimum wages, (3) failure to provide meal periods, (4) failure to provide rest periods, (5) waiting time penalties, (6) wage statement violations, (7) failure to timely pay wages, (8) failure to indemnify, and (9) unfair competition.

On November 30, 2022, Plaintiff filed a First Amended Class Action Complaint ("FAC") specifying that he seeks to represent all other current and former non-exempt California employees of Defendant, including but not limited to employees who were misclassified as exempt by Defendant.
On April 17, 2023, the Court overruled the demurrer filed by Defendant on March 10, 2023. Defendant filed an Answer on May 17, 2023.

On February 22, 2023, Plaintiff initiated a separate action for civil penalties pursuant to the Private Attorneys General Act, captioned Curtis Johnson v. Help/Systems LLC, et al., Case No. 23STCV03919 ("PAGA Action").

On February 19, 2025, the parties participated in an all-day mediation presided over by Gig Kyriacou, Esq., which resulted in settlement.
(Declaration of Brandon Chang ("Chang Decl."), ¶9.) The terms of settlement were finalized in the Class and PAGA Settlement Agreement ("Settlement Agreement"), a fully executed copy of which is attached to the Declaration of Brandon Chang as Exhibit 1. (Id. at ¶12, Ex. 1.)

On December 1, 2025, Plaintiff filed the instant Motion for Preliminary Approval of Class and Representative Action Settlement ("MPA").

On March 3, 2026, after the Court granted the parties' stipulation allowing for Plaintiff to file an amended complaint, Plaintiff filed a Second Amended Class and Representative Action Complaint ("SAC") adding a cause of action for civil penalties under PAGA. On March 23, 2026, pursuant to Johnson's Request for Dismissal, the Court dismissed the PAGA Action, Case No. 23STCV03919, without prejudice.

On April 9,
2026, the Court issued an order requesting additional briefing regarding the issues noted in the order. On August 14,
2026, the Court received the Supplemental Declaration of Brandon M. Chang ("Chang Supp. Decl."); a fully executed copy of the First Amended Class and PAGA Settlement Agreement ("FASA") (Exhibit 1) with a revised Class Notice (Exhibit A) and Plaintiff's fully executed individual settlement agreement (Exhibit B); a redlined version of the FASA (Exhibit 2) with a redlined version of the revised Class Notice (Exhibit 3); and an amended Proposed Order.

SETTLEMENT CLASS DEFINITION

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"Class"
or "Settlement Class" means all persons currently or formerly employed by Defendant in the State of California, either directly or through any subsidiary, staffing agency, or professional employer organization, as a non-exempt, hourly-paid employee, or as an exempt employee who received a salary of less than two times the applicable statewide minimum wage, during the Class Period. (FASA, ¶1.3)

o

"Class
Period" means the period from and including July 6, 2018 through and including April 20, 2025. (¶1.12)

o

"Prior
Settlement Class Members" mean the 13 Class Members with whom Defendant entered into the Prior Settlements. (¶1.40) Class Counsel explains that around August 2023, Defendant offered putative class members compensation in exchange for a release and Prior Settlement Class Members are the individuals who accepted this offer. (Chang Supp. Decl., ¶45.) Redacted copies of the prior settlement agreements are attached to counsel Chang's supplemental declaration as Exhibit 4. (Id. at ¶43, Ex.
4.)

.

"PAGA

Group" or "PAGA Group Members" mean(s) all persons currently or formerly employed by Defendant in the State of California, either directly or through any subsidiary, staffing agency, or professional employer organization, as a non-exempt, hourly-paid employee, or as an exempt employee who received a salary of less than two times the applicable statewide minimum wage, during the PAGA Period. PAGA Group Members will be included in the PAGA Group regardless of whether the PAGA Group Member submits a valid and timely Request for Exclusion from the Settlement Class. (¶1.31)

o

“PAGA Period” means the period from and including July 11, 2021 through and including April 20, 2025. (¶1.33)

.

"Class Counsel" means David D. Bibiyan, Vedang J. Patel, and Brandon M. Chang of Bibiyan Law Group, P.C. (¶1.5) – The definition of Class Counsel in the Proposed Order at ¶3 should include counsel Brandon Chang.

.

"Defendant" means named defendant Fortra, LLC, formerly known as Help/Systems, LLC. (¶1.18)

.

The Parties agree that class certification and representative treatment is for purposes of this Settlement only. (¶11.1)

TERMS OF SETTLEMENT AGREEMENT

The essential terms are as follows:

.

The Total Settlement Amount (“TSA”) is $406,000. (¶1.49)

o

The Total
Settlement Amount includes the Prior Settlements and the Remaining Settlement
Amount. (Ibid.)

o
Escalator
Clause: Defendant
represents that, as of the date of the Parties’ mediation, Defendant estimated
that the Class Members worked approximately 3,057 Workweeks for Defendant
within the State of California from July 6, 2018 through February 19, 2025. In the event that the number of Workweeks in
which the Class Members worked for Defendant within the State of California
during the Class Period increases by more than 10% (i.e. to more than
3,363 Workweeks), then Defendant agrees that the Total Settlement Amount shall increase
in proportion with the percentage of the increase above 3,363 Workweeks during
the Class Period (e.g. if the number of Workweeks increases by 11%
during the Class Period, the Total Settlement Amount shall increase by 1%,
meaning by $4,060). (¶8.1)

.
“Remaining
Settlement Amount,” which is currently estimated to be $300,000,
non-reversionary, is the Total Settlement Amount, less the Prior Settlements. (¶¶1.45, 3.1)

o
"Prior
Settlements" mean the prior settlement agreements and payments provided
under the agreements, totaling $106,000.00, which Defendant already entered
into and paid to 13 of the Class Members in resolution of claims which are
alleged in the Class Action. (¶1.41)

.
The Net Settlement
Amount (“Net”) ($82,176.67) is the “Remaining Settlement Amount” minus
the following: (¶1.28)

o
Up to $135,333.33
(1/3 of TSA) for attorney fees (¶3.2.2);

o

Up to $30,000

for attorney costs (Ibid.);

o

Up to $7,500

for a service award to Plaintiff (¶3.2.1);

o

Up to $4,990

for settlement administration costs (¶3.2.3); and

o

Payment of $40,000

PAGA penalty (75% or $30,000 to the LWDA) (¶3.2.5).

.

Defendant will
separately pay any and all employer payroll taxes owed on the Wage Portions of the Individual Class Payments. (¶3.1)

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There is no
claim form requirement. (¶3.1)

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Individual Settlement Payment Calculation:

o For the Prior
Settlement Class Members who are Participating Class Members, twenty (20%) of the Net Settlement Amount shall be divided by the total number of Workweeks worked by the Prior Settlement Class Members during the Class Period, and the result shall be multiplied by the number of Workweeks worked by the Prior Settlement Class Member during the Class Period. (¶3.2.4.1)

o For
Participating Class Members who are not Prior Settlement Class Members, eighty percent (80%) of the Net Settlement Amount shall be divided by the total number of Workweeks worked during the Class Period, by Participating Class Members who are not Prior Settlement Class Members, and the result shall be multiplied by the number of Workweeks worked by the Class Member during the Class

Period. (¶3.2.4.2)

o Tax Allocation: Each Participating Class Member's Individual Class Payment will be allocated as 20% to wages, 80% to interest and penalties. (¶3.2.4.3)

o According to Class Counsel, "[t]wenty percent (20%) of the Net Settlement Amount, currently no less than $16,435.33, divided amongst the 13 Class Members who are Prior Settlement Class Members amounts to an average of approximately $1,264.26 ($16,435.33 / 13). The Prior Settlements, totaling $106,000.00 for 13 Prior Settlement Class Members results in the average Prior Settlement Amount of $8,153.85 ($106,000 / 13). Thus, estimated average amount each Class Member who is a Prior Settlement Class Member is expected receive from the Settlement amounts to a total of $9,418.11 ($1,264.26 + $8,153.85). Eighty percent (80%) of the Net Settlement Amount, currently no less than $65,741.34, divided amongst the 7 Class Members who are not Prior Settlement Class Members results in an estimated average amount each Class Member who is not a Prior Settlement Class Member in the total amount of $9,391.62 ($65,741.34 / 7)." (Chang Supp. Decl., ¶¶61-62.)

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Individual PAGA Payments: The total amount to be paid in Individual PAGA Payments ($10,000.00) shall be divided by the total number of PAGA Pay Periods worked by all PAGA Group Members during the PAGA Period, and the result shall be multiplied by the number of PAGA Pay Periods worked by each PAGA Group Member during the PAGA Period. (¶3.2.5.1) If the Court approves a PAGA Settlement Amount in an amount less than the amount requested, the remainder will be allocated to the Net Settlement Amount. (¶3.2.5.2)

o Tax Allocation: 100% penalties and interest. (¶3.2.5.1)

.

"Response Deadline" means forty-five (45) days after the Administrator mails the Class Notice to Class Members, and shall be the last date on which Class Members may: (a) mail Requests for Exclusion from the Settlement Class, or (b) mail his or her Objection to the Settlement. If a Class Notice is returned to the Administrator as undeliverable, and the Class Notice is thereafter re-sent to the Class Member, the Response Deadline shall be extended by an additional 15 days for the Class Member to whom the Class Notice has been re-sent. (¶¶1.47, 7.4.4) The same deadline applies to the submission of workweek disputes. (¶7.6)

.

Funding of Settlement: No later than 7 days after Defendant delivers the Class Data to the Administrator, the Administrator shall provide the Parties with a calculation (and documentation demonstrating the calculation) of the amount owed by Defendant for the employer's share of any payroll taxes that may be owed on the Individual Class Member Payments. Defendant agrees to pay the Remaining Settlement Amount, plus the employer's share of any payroll taxes that may be owed on the Individual Class Member Payments, by the later of the following dates: (1) 65 calendar days after the date that the Court enters an order of Final Approval of the Settlement of the claims alleged in the Consolidated Complaint, including the claims at issue in the Class Action and the PAGA Action; or (2) the date on which any appeal that may be filed as to the Final Approval order has been fully and finally resolved. (¶4.3)

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Disbursement: Within 7 days after Defendant funds the Remaining Settlement Amount, the Administrator will mail checks for all Individual Class Payments, all Individual PAGA Payments, the LWDA PAGA Payment, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payment. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment and the Class Representative Service Payment shall not precede disbursement of Individual Class Payments, and the Individual PAGA Payments. (¶4.4)

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Uncashed Settlement Checks: The face of each check shall prominently state the date when the check will be voided, which shall be no less than 180 days after the date of mailing (the "Void Date"). The Administrator will cancel all checks that have not been cashed by the Void Date. (¶4.4.1) For any Participating Class Member whose Individual Class Payment check, and for any PAGA Group Member whose Individual

PAGA Payment check, remains uncashed and is cancelled after the Void Date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund, in the name of the Class Member or PAGA Group Member, thereby leaving no "unpaid residue" subject to the requirements of California Code of Civil Procedure Section 384, subd. (b). (¶4.4.3)

.

The settlement administrator will be Apex Class Action, LLC. (¶¶1.1, 7.1)

The proposed settlement was submitted to the LWDA on December 1, 2025. (Chang Decl., ¶16, Ex. 3.) A copy of the First Amended Settlement Agreement was submitted to the LWDA on August 14, 2026. (Chang Supp. Decl., ¶68, Ex. 5.)

Participating class members and the named Plaintiff will release certain claims against Defendant. (See further discussion below)

ANALYSIS OF SETTLEMENT AGREEMENT

1.

Does a presumption of fairness exist?

1.

Was the settlement reached through arm’s-length bargaining? On February 19, 2025, the parties participated in an all-day mediation presided over by Gig Kyriacou, Esq., which resulted in settlement. (Chang Decl., ¶9.) The terms of settlement were finalized in the Class and PAGA Settlement Agreement (“Settlement Agreement”), a fully executed copy of which is attached to the Declaration of Brandon Chang as Exhibit 1. (Id. at ¶12, Ex. 1.)

2.

Were investigation and discovery sufficient to allow counsel and the court to act intelligently? Yes.

Prior to mediation, Defendant provided the following materials through informal discovery: (a) a sampling of wage statements issued to the Class Members; (b) applicable wage-and-hour policy materials from throughout the Class Period; (c) a spreadsheet itemizing reimbursements that were requested by, and made to, Class Members during the Class Period; (d) a redacted list of employment data for the Class Members; (e) a 50% sampling of electronic time punch records for the Class Members; and (f) a 50% sampling of electronic payroll data for the Class Members.

(Chang Decl., ¶7.) The Settlement was reached after factual and legal investigation and research; negotiation regarding the scope of informal discovery; the exchange of informal discovery; the exchange of documents and information that included review of time and pay records and analysis thereof with the aid of Plaintiff and expert consultant; analysis of shifts and Workweeks worked by Class Members in the Class Period, analysis of the number of pay periods and number of Aggrieved Employees in the PAGA Period extrapolated and analyzed by Class Counsel and expert data consultants from the data produced by Defendant for calculating PAGA penalties, number of Class Members eligible for wage statement penalties and waiting time penalties; an analysis of Plaintiff's employment records; correspondence and communication between counsel; a review of pleadings, evidence and rulings in similar actions litigated elsewhere in the state; a review of similar cases in the same industry elsewhere in the country; and preparation for and attendance at a full-day mediation, followed by further discussions and coordination to finalize the terms and conditions of the general settlement parameters agreed to by the Parties. (Id. at ¶17.) In response to the Court's request, Class Counsel provided the following additional information. Class Counsel received a full class list, a 50% sampling of time data and a 50% sampling of payroll data, exemplars of Defendant's job descriptions for Class Members, Defendant's policy documents, and other documents sufficient for Class Counsel to evaluate Plaintiff's claims. The time data and payroll data allowed Class Counsel, with the aid of expert data consultants, to determine the total number of Workweeks worked by Class Members during the Class Period, the number of pay periods worked by Aggrieved Employees during the PAGA Period, the number of meal-eligible shifts, the number of rest-eligible shifts, the extrapolated number of unique facial meal period violations during the Class Period, and the number of Class Members who were paid a monthly salary of less than twice the California minimum wage during the relevant time period. From this data, Class Counsel developed a comprehensive damages model to determine Defendant's exposure amount and reach a settlement amounting to approximately $132.81 for each of the estimated 3,057 Workweeks worked by Class Members during the Class Period. Class Counsel's expert consultant was also able to develop a comprehensive analysis of the issues at hand and provide a detailed data analysis which aided Class Counsel in developing the comprehensive damages model.

(Chang Supp. Decl., ¶30.)

3.
Is Class
Counsel experienced in similar litigation? Class Counsel is experienced in class action litigation, including wage and hour class actions. (Chang Decl., ¶¶45-48; Declaration of David D. Bibiyan, ¶¶2-15.)

4.
What
percentage of the class has objected? This cannot be determined until the fairness hearing. See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2014) ¶ 14:139.18, ("Should the court receive objections to the proposed settlement, it will consider and either sustain or overrule them at the fairness hearing.").

CONCLUSION: The settlement is entitled to a presumption of fairness.

2. Is the settlement fair, adequate, and reasonable?

1.
Strength of
Plaintiff's case. "The most important factor is the strength of the case for plaintiff on the merits, balanced against the amount offered in settlement." (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130.) Here, Class Counsel has provided information, summarized below, regarding the estimated values of the class claims alleged:

Violation

Potential
Exposure

Unpaid Wages (OTC)

$347,490

Unpaid Wages (Minimum Wage)

$0

Meal Period Violations

$340,131

Rest Period Violations

$327,847

Wage Statement Violations

$112,800

Waiting Time Penalties

$81,842

Failure to Indemnify Business Expense

$0

PAGA Penalties

$125,590

Total

$1,335,700

(Chang Decl., ¶¶19-38; Chang Supp. Decl., ¶¶33-41.) Counsel's exposure analysis for the unfair competition claim is incorporated into the exposure analysis for the other claims. (Chang Supp. Decl., ¶41.)

2. Risk, expense, complexity and likely duration of further litigation. Given the nature of the class claims, the case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and appeals) are also likely to prolong the litigation as well as any recovery by the class members.

3. Risk of maintaining class action status through trial. Even if a class is certified, there is always a risk of decertification. (See Weinstat v. Dentsply Intern., Inc. (2010) 180 Cal.App.4th 1213, 1226 ("Our Supreme Court has recognized that trial courts should retain some flexibility in conducting class actions, which means, under suitable circumstances, entertaining successive motions on certification if the court subsequently discovers that the propriety of a class action is not appropriate.").)

4. Amount offered in settlement. Class Counsel estimated Defendant's potential damages to be in the amount of $1,335,700. Class Counsel obtained a settlement valued at $406,000. This is approximately 30.4% of Plaintiff's potential recovery which, given the uncertain outcomes, is within the "ballpark" of reasonableness.

The settlement amount, if reduced by the requested deductions, leaves approximately $82,176.67 to be divided among approximately 20 class members. Assuming full participation, 20% of the Net Settlement ($16,435.33) will be divided among the 13 Prior Settlement Class Members, averaging approximately $1,264.26 per individual. Prior Settlement Class Members have also received an average of $8,153.85 each from the Prior Settlements ($106,000 divided by 13 Prior Settlement Class Members); thus, the estimated average amount received by a Prior Settlement Class Member is $9,418.11. As to Class Members who are not Prior Settlement Class Members, 80% of the Net Settlement ($65,741.34) will be divided amongst 7 non-Prior Settlement Class Members, resulting in an estimated average amount of $9,391.62.

5. Extent of discovery completed and stage of the proceedings. As indicated above, at the time of the settlement, Class Counsel conducted sufficient discovery.

6. Experience and views of counsel. The settlement was negotiated and endorsed by Class Counsel who, as indicated above, is experienced in class action litigation, including wage and hour class actions.

7. Presence of a governmental participant. This

factor is not applicable here.

8. Reaction of the class members to the proposed settlement. The class members’ reactions will not be known until they receive notice and are afforded an opportunity to object, opt-out and/or submit claim forms. This factor becomes relevant during the fairness hearing.

CONCLUSION: The settlement can be preliminarily deemed “fair, adequate, and reasonable.”

3. Scope of the release

Release of Claims: The following release of claims will become effective upon entry of Judgment, the Order granting Final Approval of this Settlement, and Defendant's payment of the entire Remaining Settlement Amount and the employer's share of any payroll taxes owed on the Wage Portion of the Individual Class Payments: (¶5)

.

Release by Participating Class Members: Plaintiff and all Participating Class Members (who do not submit a valid Request for Exclusion) will release and discharge the Released Parties from all causes of action and factual or legal theories that were alleged in the operative complaint in the Class Action, or that reasonably could have been alleged based on the facts and legal theories contained in the operative complaint in the Class Action, including all of the following claims for relief: (a) failure to pay all wages owed, including minimum and overtime wages; (b) failure to provide proper meal periods, and to properly provide premium pay in lieu thereof; (c) failure to provide proper rest periods, and to properly provide premium pay in lieu thereof; (d) failure to provide complete, accurate, and/or properly formatted wage statements; (e) waiting time penalties; (f) failure to timely pay all wages during employment; (g) failure to reimburse all reasonable and necessary business expenses; (h) unfair business practices that could have been premised on the claims, causes of action, or legal theories of relief described above or on any of the claims, causes of action, or legal theories of relief pleaded in the operative complaint in the Class Action; (i) any other claims or penalties under the wage and hour laws pleaded in the operative complaint in the Class Action; and (j) all damages, penalties, interest, and other amounts recoverable under said claims, causes of action, or legal theories of relief in the Class Action (collectively, the "Released Class Claims"). The period of the Release shall extend to the limits of the Class Period. The res judicata effect of the Judgment will be the same as that of the Release. The Released Class Claims exclude claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, claims while properly classified as exempt, and claims based on facts arising outside of the Class Period. (¶5.1) Participating Class Members (meaning those who do not submit a timely or valid Request for Exclusion from the Settlement Class) will waive and release the Released Parties from all claims, rights, demands, damages, liabilities, and causes of action, in law or in equity, arising at any time during the Class Period for the claims brought by Plaintiff in the Class Action or that could have reasonably been brought by Plaintiff in the Class Action based on the allegations made by Plaintiff in the Class Action. (¶5.2)

.

Release by
Plaintiff, the State of California, and the PAGA Group Members: The Parties agree that, in consideration for the PAGA Settlement Amount, Plaintiff and the State of California will release the Released Parties from all claims and legal theories for civil penalties under PAGA, arising during the PAGA Period, based on the facts and/or legal theories which are or could have reasonably been alleged in the operative complaint in the PAGA Action and/or in Plaintiffs PAGA Notice. The Parties agree that Plaintiff, the PAGA Group Members, and the State of California will be bound by the Court's Judgment approving the settlement of all claims alleged in the PAGA Action and in Plaintiffs PAGA Notice. (¶5.3)

o
"PAGA
Notice" means Plaintiff's July 11, 2022 letter, to Defendant and the LWDA, providing notice, pursuant to Labor Code section 2699.3 subd. (a), of claims against Defendant under PAGA. (¶1.35;
Chang Decl., ¶3, Ex. 2)

o
Because
future PAGA claims are subject to claim preclusion upon entry of the Judgment, Non-Participating Class Members who are PAGA Group Members are deemed to

release the claims identified in Paragraph 5.3 of this Agreement and are
eligible for an Individual PAGA Payment. (¶7.5.4)

.

"Released
Parties" means Defendant and its past and present direct and indirect officers,
directors, employees, agents, and insurers.
(¶1.44)

.

Plaintiff's
General Release and CC § 1542 Waiver: Pursuant to a separate agreement, the parties have agreed to a
general release of all claims Plaintiff has or may have against any of the
Released Parties (whether known or unknown) arising out of Plaintiffs
employment relationship with Defendant and/or the separation thereof and based
upon conduct allegedly occurring on or before the date that Plaintiff executes
this separate settlement agreement.
(¶2.9; Chang Decl., ¶10, Ex. B.)
In consideration for Plaintiff's execution of this Agreement, and
Plaintiff's agreement to the release and other terms provided hereunder,
Defendant agrees to pay to Plaintiff a sum of $19,000.00 (Nineteen Thousand
dollars and zero cents) ("Settlement Sum") within thirty (30) days of the
Effective Date. (Chang Decl., ¶10, Ex. B
at ¶2.A.) The Settlement Sum will be
paid in three checks, as follows: (1) one check in the amount of $1,000
intended to compensate Plaintiff for all wages allegedly owed, (2) one check in
the amount of $9,450 intended to compensate Plaintiff for all alleged
non-economic damages, penalties, interest, and all other damages allegedly
owed, and (3) one check in the amount of $8,550 payable to "Bibiyan Law Group,
P.C." intended to compensate Plaintiff for all claims for attorneys' fees and
costs incurred in connection with the claims that Plaintiff has agreed to
settle and release under this Agreement.
(Ibid.)

o

According
to Class Counsel, the separate action is based on Plaintiff's claim that he was
allegedly terminated for requesting Family and Medical Act Leave ("FMLA")
and/or taking paid sick leave. Plaintiff's
separate factual bases for alleged wrongful termination do not directly

contradict or jeopardize the class or PAGA claims, were separately negotiated, and do not detract from the settlement amount.

Plaintiff's individual claims are separate and apart from the wage and hour claims at issue as part of this settlement. Furthermore, Plaintiff claims are typical of those of other Class Members and he is an adequate representative for the Class (as explained below). (Chang Supp. Decl., ¶¶46-51.) A fully executed copy of the individual agreement is attached to counsel's Chang's supplemental declaration as part of Exhibit 1 and designated as Exhibit B. (Id. at ¶46.)

4. May conditional class certification be granted?

1. Standards

A detailed analysis of the elements required for class certification is not required, but it is advisable to review each element when a class is being conditionally certified (Amchem Products, Inc. v. Winsor (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a different standard to determine the propriety of a settlement class as opposed to a litigation class certification. Specifically, a lesser standard of scrutiny is used for settlement cases. (Dunk at 1807, fn 19.) Finally, the Court is under no "ironclad requirement" to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (Wershba at 240.)

2. Analysis

a. Numerosity. There are approximately 20 putative Class Members. (Chang Decl., ¶42.) This element is met.

b. Ascertainability. The proposed class is defined above. The class definition is "precise, objective and presently ascertainable." (Sevidal v. Target Corp. (2010) 189 Cal.App.4th 905, 919.) The class members are identifiable from Defendant's records. (Chang Decl., ¶41.)

c.
Community
of interest. "The community of interest requirement involves three factors: '(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.'" (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

As to common questions of law or fact, Plaintiff contends that this litigation is brought to resolve common issues that include (1) whether Defendant failed to pay for all hours worked, (2) whether Defendants provided full, timely and un-interrupted meal and rest periods, (3) whether Class Members are entitled to premium pay for incomplete, untimely, or interrupted meal or rest periods, among other claims as set forth above. (Chang Decl., ¶43.)

As to typicality, Plaintiff alleges that his claims are typical of those of other Class Members as Plaintiff: (1) was a non-exempt, hourly-paid employee, or an exempt employee who received a salary of less than two times the applicable statewide minimum wage like other Class Members; (2) complained of not being paid for all time under Defendant's control or suffered and/or permitted to work for Defendant; (3) did not receive full premium pay for meal periods that were not compliant with the Labor Code; (4) did not receive premium pay for rest periods that were not provided, among others as set forth above. (Chang Decl., ¶44.)

As to adequacy, Plaintiff has participated in the litigation, is aware of the risks and duties of serving as class representative, does not have any conflicts of interest with other Class Members, and is represented by experienced counsel. (Chang Decl., ¶49; see Declaration of Curtin Johnson.)

d.
Adequacy of
class counsel. As indicated above, Class Counsel has shown experience in class action litigation, including wage and hour class actions.

e.
Superiority.
Given the relatively small size of the individual claims, a class action

appears to be superior to separate actions by the class members.

CONCLUSION: The class may be conditionally certified since the prerequisites of class certification have been satisfied.

5. Is the notice proper?

1.
Content of class notice. The proposed notice is attached to the Settlement Agreement as Exhibit A. Its content appears to be acceptable. It includes information such as: a summary of the litigation; the nature of the settlement; the terms of the settlement agreement; the proposed deductions from the gross settlement amount (attorney fees and costs, enhancement awards, and administration costs); the procedures and deadlines for participating in, opting out of, or objecting to, the settlement; the consequences of participating in, opting out of, or objecting to, the settlement; and the date, time, and place of the final approval hearing.

According to Class Counsel, the Class Notice will be distributed to Class Members in English and Spanish. (Chang Decl., ¶14)

2.
Method of class notice.

Class Data: No later than 30 days after the Court grants Preliminary Approval of the Settlement, Defendant will deliver the Class Data to the Administrator, in Microsoft Excel or similar electronic format. (¶4.2)

Notice via direct mail: Using best efforts to perform as soon as possible, and in no event later than 14 days after receiving the Class Data, the Administrator will send to all Class Members identified in the Class Data, via first-class United States Postal Service (USPS") mail, the Class Notice. Before mailing the Class Notices, the Administrator shall update Class Member addresses using the National Change of Address database. (¶7.4.2)

Not later than 3 business days after the Administrator’s receipt of any Class Notice returned by the USPS as undelivered, the Administrator shall re-mail the Class Notice using any forwarding address provided by the USPS. If the USPS does not provide a forwarding address, the Administrator shall conduct a Class Member Address Search, and re-mail the Class Notice to the most current address obtained. The Administrator has no obligation to make further attempts to locate or send Class Notice to Class Members whose Class Notice is returned by the USPS a second time. (¶7.4.3)

The deadlines for Class Members' written objections, challenges to workweeks and/or pay periods, and Requests for Exclusion from the Class will be extended an additional 15 days, beyond the 45-day deadline otherwise provided in the Class Notice, for all Class Members whose notice is re-mailed. The Administrator will inform the Class Member of the extended deadline with the re-mailed Class Notice. (¶7.4.4)

Notice of Final Judgment and any change to the date, time, or location of the Final Approval Hearing will be posted on the Settlement Administrator’s website. (¶7.8.1)

3.

Cost of class notice. As indicated above, settlement administration costs are estimated not to exceed $4,990 (¶3.2.3). Prior to the time of the final fairness hearing, the administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

6.

Attorney fees and costs

CRC rule 3.769(b) states: “Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action.”

Ultimately, the award of attorney fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) Despite any agreement by the parties to the contrary, “the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable.” (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether Class Counsel is entitled to $135,333.33 (1/3 of TSA) (¶3.2.2) in attorney fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees. Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel. The parties have adjusted the settlement terms to provide a one-third fee recovery for Class Counsel while spreading the burden of paying such fees among both class members who received Prior Settlements and those who did not, resulting in a fair allocation of the settlement funds provided.

Class Counsel should also be prepared to justify the costs sought (capped at $30,000) by detailing how they were incurred.

7. Incentive Awards

The Settlement Agreement provides for enhancement awards of up to $7,500 to the named Plaintiff (¶3.2.1). In connection with the final fairness hearing, named Plaintiff must submit a declaration attesting to why he or she should be entitled to an enhancement award in the proposed amount. The named Plaintiff must explain why he or she “should be compensated for the expense or risk she has incurred in conferring a benefit on other members of the class.” (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial courts should not sanction enhancement awards of thousands of dollars with “nothing more than pro forma claims as to ‘countless’ hours expended, ‘potential stigma’ and ‘potential risk.’ Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiff, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit . . . .’” (Id. at 806-807, italics and ellipsis in original.)

The Court will decide the issue of the enhancement awards at the time of final approval.